

4-222. Application for free process and affidavit of indigency.

[For use with Supreme Court General Rule 23-114 NMRA]

STATE OF NEW MEXICO

COUNTY OF Bernalillo

Metropolitan Court

COURT

Sandia Rental Group, LLC, Petitioner,

v.
John Doe, Respondent.

No. D-202-CV-2024-01234

APPLICATION FOR FREE PROCESS AND AFFIDAVIT OF INDIGENCY

I request that the court enter an order permitting me to file this case without prepayment of fees and costs and give upon my oath or affirmation the following statement.

My marital status is: Single ☒ Married ☐ Divorced ☐ Separated ☐ Widowed ☐

I request interpretation services: ☐ yes ☒ no (If yes, please describe what you need)

INFORMATION ABOUT MY FINANCES (check all that apply to you and fill in the blanks):

A. PUBLIC ASSISTANCE

☐ I do not receive public assistance (If you check this blank, go directly to Section B EMPLOYMENT/UNEMPLOYMENT).

☒ I currently receive the following public assistance in Bernalillo County (please check all applicable public assistance programs):

☐ Temporary Assistance for Needy Families (TANF)

☒ Food Stamps

☒ Medicaid (for myself)

☐ General Assistance (GA)

☐ Supplemental Security Income (SSI)

☐ Public Housing

☐ Disability Security Income (DSI)

☐ Department of Health Case Management Services (DHMS)

☐ Other (please describe _____)

B. EMPLOYMENT/UNEMPLOYMENT

____ I am currently unemployed and have been unemployed for ____ months in the past year. I am unemployed because _____.

____ I receive unemployment benefits in the amount of \$_____ per month.

____ I have no income because I am unemployed.

____ I am employed. I am paid \$_____ per hour and work ____ hours per week.

✓ My employer's name, address and phone number is:

____ I am married, and my spouse is unemployed and has been unemployed for ____ months in the past year because _____.

____ My spouse receives unemployment benefits in the amount of \$_____ per month.

____ I am married, and my spouse is employed. My spouse is paid \$_____ per hour and works _____ hours per week.

My spouse's employer's name, address and phone number is:

C. OTHER SOURCES OF INCOME (*Check all that apply*)

____ I have income from another source not mentioned above.

____ Child Support \$_____

____ Alimony \$_____

____ Investments \$_____

____ Community property from my spouse \$_____

____ Other _____ \$_____

✓ I do not have any other sources of income.

____ I am married, and my spouse has income from another source not mentioned above.

____ Child Support \$_____

____ Alimony \$_____

____ Investments \$_____

____ Other _____ \$_____

____ Other _____ \$_____

____ I am married, and my spouse does not have any other sources of income.

____ Another adult contributes to household income in the following amount: \$_____

D. OTHER ASSETS (Please list other assets owned by you or your spouse that can be turned into cash. Do not include money you have in retirement accounts):

Cash on hand	\$ 50.00
Bank accounts	\$ 140.00
Income tax refund	\$ 0.00
Other assets (describe below):	
_____	\$ 0.00
_____	\$ _____

IF YOU DO NOT HAVE ACCESS TO YOUR OWN OR YOUR SPOUSE'S INCOME OR ASSETS, EXPLAIN WHY.

E. MONTHLY EXPENSES

House Payment/Rent	\$ 950.00
Utilities	\$ 160.00
Telephone	\$ 50.00
Groceries (after food stamps)	\$ 340.00
Car Payment(s)	\$ 0.00
Gasoline	\$ 130.00
Insurance	\$ 0.00
Child Care	\$ 0.00
Student and Consumer Loans	\$ 150.00
Court-ordered family support obligations	\$ 0.00
Other court-ordered payments	\$ 0.00
Medical expenses	\$ 90.00
Other _____	\$ _____

F. HOUSEHOLD

I live at 1234 Central Ave SW, Albuquerque, NM 87102 _____,
and the head of the household is John Doe _____.

Other than myself, the other members of the household are:

<u>Name</u>	<u>Age</u>	<u>Employment</u>	<u>I Support</u>
_____	_____	_____	()

_____	_____	_____	()
_____	_____	_____	()
_____	_____	_____	()
_____	_____	_____	()
_____	_____	_____	()
_____	_____	_____	()

This statement is made under oath. I hereby state that the above information regarding my financial condition is correct to the best of my knowledge. I hereby authorize the Court to obtain information from financial institutions, employers, relatives, the federal internal revenue service and other state agencies. If at any time the Court discovers that information in this application for free process was false, misleading, inaccurate, or incomplete at the time the application was submitted, the Court may require me to pay for any costs or fees that were waived under an order of free process that was granted based on the information in this application.

(Signature)

John Doe

(Print Name)

_____*Petitioner* ☒ *Respondent*
(Pro Se)

1234 Central Ave SW

(Street Address)

Albuquerque, NM 87102

(City, State, Zip Code)

(505) 555-0198

(Telephone)

State of New Mexico)
) ss
County of Bernalillo County)

Signed and sworn to (or affirmed) before me on _____ (date)
by John Doe (name of applicant).

Notary

My commission expires: _____

IF YOU ARE REPRESENTED BY AN ATTORNEY, YOUR ATTORNEY MUST SIGN THE FOLLOWING CERTIFICATE.

I, _____, hereby certify that I have not received any attorney
(Name of attorney)

fee to represent _____. If any attorney fee is paid to me, I understand
(Name of applicant)

that I shall pay to the court clerk from such attorney fee any court fees and costs that may
be waived by the court.

(Attorney signature)

Address

City, State, Zip Code

Telephone/Fax Number

[Adopted by Supreme Court Order No. 07-8300-043, effective February 25, 2008; as amended by Supreme Court Order No. 08-8300-031, effective November 17, 2008; by Supreme Court Order No. 10-8300-044, effective February 9, 2011.]